

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #
Date of filing:

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REGINALD C. WALTER,

Plaintiff designates Queens County
as the place of trial

Plaintiff,

SUMMONS

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, POLICE OFFICER
ABDULHADI CHALATI-Shield # 10501, POLICE
OFFICER FREDDY GUEVARA-Shield # 13815 and
POLICE LIEUTENANT DANNY LEI,

Locus of Occurrence at
at or near the intersection of Linden
Boulevard and Merrick Boulevard

Defendants.

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County of Queens

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER ABDULHADI CHALATI-
Shield # 10501
Tax ID # 956511
c/o New York City Police Department-
Patrol Borough Queens South Specialized Units
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

POLICE OFFICER FREDDY GUEVARA-
Shield # 13815
Tax ID # 960626
c/o New York City Police Department-
Patrol Borough Queens South Specialized Units
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

Defendant's address:

POLICE LIEUTENANT DANNY LEI
Tax ID # 936939
c/o New York City Police Department-
Patrol Borough Queens South Specialized Units
71-01 Parsons Boulevard
Fresh Meadows, New York 11365

Dated: Brooklyn, New York
June 12, 2024

SUPREME COURT OF THE STATE OF NEW YORK Index No.:
COUNTY OF QUEENS

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REGINALD C. WALTER,

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ABDULHADI CHALATI-Shield # 10501, POLICE
OFFICER FREDDY GUEVARA-Shield # 13815 and
POLICE LIEUTENANT DANNY LEI,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF REGINALD C. WALTER**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Nassau, State of New York.
2. That at all times hereinafter mentioned, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, was a resident of the State of New York.
3. That at all times hereinafter mentioned, the defendant, POLICE OFFICER FREDDY GUEVARA-Shield # 13815, was a resident of the State of New York.
4. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
5. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
6. That prior hereto on September 19, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,

was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on February 20, 2024.

8. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, owned the motor vehicle used as a New York City Police Department motor vehicle.

9. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, operated the motor vehicle used as a New York City Police Department motor vehicle.

10. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, controlled the motor vehicle used as a New York City Police Department motor vehicle.

11. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle.

12. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle, with the knowledge, permission and consent of defendant, THE CITY OF NEW YORK.

13. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER FREDDY GUEVARA-Shield # 13815, was a legal passenger in a motor vehicle used as a New York City Police Department motor vehicle, owned by the defendant, THE CITY OF NEW YORK and operated by the defendant,

POLICE OFFICER ABDULHADI CHALATI-Shield # 10501.

14. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, was an employee of the defendant, THE CITY OF NEW YORK.

15. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER FREDDY GUEVARA-Shield # 13815, was an employee of the defendant, THE CITY OF NEW YORK.

16. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, operated and controlled motor vehicle used as a New York City Police Department motor vehicle within the scope of his employment.

17. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER FREDDY GUEVARA-Shield # 13815, was a legal passenger in a motor vehicle used as a New York City Police Department motor vehicle, owned by the defendant, THE CITY OF NEW YORK and operated by the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, and acting within the scope of his employment.

18. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, REGINALD C. WALTER, owned a Yamaha motorcycle, bearing license plate number 856AM0, State of New York.

19. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, REGINALD C. WALTER, operated a Yamaha motorcycle, bearing license plate number 856AM0, State of New York.

20. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, REGINALD C. WALTER, controlled a Yamaha motorcycle, bearing license plate number 856AM0, State of New York.

21. That on July 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the plaintiff, REGINALD C. WALTER, operated and controlled a

Yamaha motorcycle, bearing license plate number 856AM0, State of New York.

22. That at all times hereinafter mentioned, at or near the intersection of Linden Boulevard and Merrick Boulevard, in the County of Queens, City and State of New York, was and still is a public highway used extensively by the public in general.

23. That on July 8, 2023, the motor vehicle owned by the defendant, THE CITY OF NEW YORK, operated by the defendant, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501 and occupied by the defendant, POLICE OFFICER FREDDY GUEVARA-Shield # 13815, came into contact with plaintiff's motorcycle at the aforementioned location.

24. That the aforesaid collision and injuries resulting therefrom, were due solely and wholly to the careless, negligent, reckless and/or intentional manner in which the defendants owned, operated and controlled their motor vehicles without this plaintiff in any way contributing thereto.

25. That by reason of the foregoing and the negligence of said defendants, this plaintiff sustained serious, severe, and permanent injuries to his limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

26. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

27. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes his aforesaid injuries are permanent and that he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

28. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.

29. That by reason of the foregoing, the plaintiff has been unable to attend to his occupation, avocation and/or activity in the manner required.

30. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

31. This action falls within one or more of the exceptions set forth in CPLR §1602.

32. That as a result of the defendants' negligence as aforesaid, this plaintiff, REGINALD C. WALTER, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF REGINALD C. WALTER**

33. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "32" herein, as though more fully set forth herein at length.

34. That on July 8, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ABDULHADI CHALATI-Shield # 10501, POLICE OFFICER FREDDY GUEVARA-Shield # 13815 and POLICE LIEUTENANT DANNY LEI, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, REGINALD C. WALTER.

35. That on July 1, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

36. That as a result of the aforesaid false arrest and confinement, the plaintiff, REGINALD C. WALTER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

37. By the reason of the foregoing, the plaintiff, REGINALD C. WALTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR PROPERTY DAMAGE
AND/OR LOSS OF USE ON BEHALF OF REGINALD C. WALTER**

38 That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "37" herein, as though more fully set forth herein at length.

39. That at all times hereinafter mentioned, plaintiff, REGINALD C. WALTER, was the owner a Yamaha motorcycle, bearing license plate number 856AM0, State of New York.

40. That plaintiff's motorcycle was rendered unusable and valueless as a result of the aforesaid collision. Damages for the vehicle and/or loss of use for said vehicle are claimed.

41. That solely by reason of the foregoing, plaintiff, REGINALD C. WALTER, was damaged in a sum exceeding the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff, REGINALD C. WALTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **First** Cause of Action; plaintiff, REGINALD C. WALTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Second** Cause of Action; plaintiff, REGINALD C. WALTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Third** Cause of Action; together with attorneys' fees and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 12, 2024

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
REGINALD C. WALTER
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23RW07-08

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
June 12, 2024



ROBERT MIJUCA, ESQ.